

		The final approval hearing is scheduled for <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
9	Rodriguez Diaz v. Corales Restaurants, Inc. 2015-00825337	<u>Plaintiff's Motion for Final Approval of Class Action Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$139,500 class action settlement. The court grants the motion as follows: \$10,000.00 for enhancement award to plaintiff; \$50,000.00 for attorneys' fees; \$12,870.48 for litigation costs (\$3,891.13 + \$8,979.35); and \$5,550.00 for settlement administration costs. For unknown reasons, plaintiff filed two copies of the second amendment to the second amended class action settlement agreement (ROA 562, 572), one signed only by plaintiff and one signed by plaintiff and defendants. The court has reviewed ROA 572 (the fully executed copy); plaintiff therefore need not take any further action in response to the court's August 26, 2026 order (ROA 575). The final accounting hearing is scheduled for <u>April 8, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice and to file a proof of service.
10	Schimmelpfennig v. Philip Tupy 2024-01408612	<u>Premier Building Systems, LLC's Motion for Relief from Stipulated Case Management Order</u> Premier Building Systems, LLC (PBS) moves for relief from the Stipulated Case Management Order No. 1 entered in this case on March 14, 2025. ROA 148. PBS states that it had no involvement with the facts underlying this case. PBS asserts that plaintiff Paul Schimmelpfennig and defendant Philip Tupy dba Tupy Construction (Tupy) erroneously named PBS as a defendant and cross-defendant, respectively, and that both plaintiff and Tupy have since dismissed PBS. No oppositions to PBS's motion have been filed. Plaintiff named PBS as a defendant in his complaint by means of a Doe amendment filed March 20, 2026. ROA 314. Tupy named PBS as a cross-defendant by means of a Doe amendment filed September 8, 2025. ROA 201. PBS filed an answer to plaintiff's